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Arkansas Accountability Project <arkansaspap@gmail.com>

CITY-2026-164 — Request for Clarification and Supplemental Production

1 message

Arkansas Accountability Project <arkansaspap@gmail.com> Wed, Oct 21, 2026 at 8:17 AM
To: lrjames@sherwoodar.gov
Cc: pio@sherwoodpolice.org

Dear FOIA Coordinator,

Because the completed CITY-2026-164 request does not provide an option for submitting additional correspondence through JustFOIA, I am sending this clarification directly by email. Please associate it with the original request and preserve it as part of the city's response history.

The Arkansas Accountability Project is following up regarding the records produced on October 5, 2026, in response to FOIA request CITY-2026-164.

Our August 27 request sought all responsive email communications and attachments concerning Sherwood's BRINC/ Motorola Drone as First Responder program from January 1, 2025, through August 27, 2026.

The request specifically included correspondence involving the Mayor's Office, City Attorney, purchasing and finance personnel, outside vendors, contract authorization, legal review, and whether City Council approval was required before execution of the March 16, 2026 agreement.

On October 20, Mayor Mary Jo Heye-Townsell publicly made several statements directly relevant to the records previously requested.

Specifically, she stated that:

1. The City Attorney reviewed the agreement before she signed it.
2. Attorneys with the Arkansas Municipal League also reviewed the agreement and concluded that no laws had been violated.
3. The agreement was procured through TIPS and Sourcewell purchasing programs.
4. Prior City Council approval was unnecessary under the legal guidance the city received.

These statements identify specific activities, participants, and procurement procedures that appear to fall within the original scope of CITY-2026-164.

We are therefore requesting clarification regarding the completeness of the October 5 production.

Please confirm the following:

1. Were the mayor's official email account and records maintained by the Mayor's Office searched for communications responsive to CITY-2026-164?
2. Were the City Attorney's records searched for communications concerning the BRINC/Motorola agreement, including any correspondence with the Arkansas Municipal League?
3. Were the city's purchasing, finance, and administrative records searched for correspondence concerning TIPS, Sourcewell, cooperative purchasing authorization, and execution of the agreement?
4. Did the city's original search include records sent to or received from the Arkansas Municipal League concerning the BRINC/Motorola agreement?
5. Does the October 5 production represent all responsive records located across the relevant city departments

and custodians, or were additional records identified, withheld, or maintained separately?

We also request supplemental production of any responsive existing records omitted from CITY-2026-164, including emails, attachments, meeting invitations, memoranda, and communications documenting the legal reviews and procurement determinations described by the mayor.

If responsive records were withheld, please identify the applicable statutory exemption. If records were not located for a particular office or category, please identify that category.

We recognize that some consultations may have occurred verbally and may not have generated written records. Our request concerns existing records and does not require the city to create explanations or documents that do not exist.

This correspondence is intended as a clarification and request for supplemental production under CITY-2026-164, not as a new request duplicating CITY-2026-199.

Our objective is to reconcile the city's earlier production with the specific review and authorization activities subsequently identified in the mayor's public statements.

Thank you for your assistance.

John McKeehan

Arkansas Accountability Project
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